Date: April 30, 2012 **Program ID :** PRG-1009629

Program Name: Original Pancake House Franchise Inc

Operator: THE ORIGINAL PANCAKE HOUSE FRANCHIS
8601 SW 24TH AVE
PORTLAND OR 97219-4034

Effective Dates: July 1, 2014 through June 30, 2015 **Price Type:** Fixed Price
Print Date: November 5, 2014

THE ORIGINAL PANCAKE HOUSE FRANCHIS,

We are pleased to confirm pricing information for orders requested for delivery between July 1, 2014 and June 30, 2015 for the above named operator. During this time period, orders placed by THE ORIGINAL PANCAKE HOUSE FRANCHIS through your authorized distributor will be priced by Kraft to your authorized distributor at a maximum of the fixed price type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Diana Turner

Kraft Representative

Date: April 30, 2012
PRG-1009629 - Fixed Price

SCC#	Product Description	UOM	Fixed Price Pays To: Distributor
00290000782700	24Z PLTRS PNUT OIL PLS BOT 12	CS	$32.29
00430008458100	CALUMET 6/5# BAKING POWDER	CS	$51.00

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product

IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.

Date: April 30, 2012

Program ID : PRG-1009629

Program Name: Original Pancake House Franchise Inc

Operator:
THE ORIGINAL PANCAKE HOUSE FRANCHIS
8601 SW 24TH AVE
PORTLAND OR 97219-4034

Distributor:
CHEFS WAREHOUSE CINCINNATI
619 LINN ST
CINCINNATI OH 45203-1701

Effective Dates: July 1, 2014 through June 30, 2015
Print Date: November 5, 2014

Price Type: Fixed Price

CHEFS WAREHOUSE CINCINNATI,

We are pleased to confirm pricing information for orders requested for delivery between July 1, 2014 and June 30, 2015 for the above named operator only. During this time period, product sold to CHEFS WAREHOUSE CINCINNATI for delivery to THE ORIGINAL PANCAKE HOUSE FRANCHIS will receive the fixed price type price to CHEFS WAREHOUSE CINCINNATI the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

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Sincerely,

Diana Turner

Kraft Representative

Date: April 30, 2012
PRG-1009629 - Fixed Price

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I. Headquarter Rebate defined as a percent unit basis.

DETAILS
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II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product

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OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

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